

COMPLETE LEARNING SESSION

Administrative Tribunals - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 46 - Administrative Tribunals - Complete Learning Session

Subject: Polity | **GS Paper:** GS-II | **Legal control date:** 8 September 2026

Legal method: constitutional text, current statutory operation and judicial interpretation are separate. Invalidated service-condition provisions are not presented as current law.

Learning promise: visual-first Basic sessions; exact Articles 323A/323B; Administrative Tribunals Act architecture; correct review, contempt and precedent routes; independence cases; 2021 rationalisation; comparative bodies; synchronized practice; optional Advanced; final register notes.

BASIC LEARNING SESSION

SESSION 1 - CONCEPT FIREWALL: TRIBUNAL, COURT, QUASI-JUDICIAL BODY AND DEPARTMENT

DEFINITION / WHAT THIS IS CALLED

A tribunal is a statute-created adjudicatory body with limited subject jurisdiction. A court belongs to the ordinary or constitutional judiciary; a quasi-judicial body is any authority required to decide a bounded issue judicially; a departmental authority remains inside executive administration even when it hears an appeal.

VISUAL FIRST

DISPUTE

- +--> ordinary/constitutional court: general judicial institution
- +--> tribunal: statutory specialist adjudication
- +--> quasi-judicial authority: function-specific duty to hear and decide fairly
- `--> departmental authority: internal administrative reconsideration

TEST: source + function + jurisdiction + independence + review route

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Tribunalisation shifts specified adjudication to a specialist forum, but neither expertise nor a judicial procedure converts that forum into a constitutional court.

MUST-WRITE KEYWORDS

limited jurisdiction · adjudication · quasi-judicial function · departmental appeal · constitutional court

TEACHING AND EXAM LINK

The category depends on legal source and function, not nomenclature. CAT decides covered service disputes and issues binding orders. A disciplinary appellate authority reconsiders an employer's decision within the department. A regulator may make rules, investigate and also decide a licence dispute quasi-judicially. High Courts possess constitutional status and Articles 226/227 powers that a tribunal cannot acquire by imitation.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** A specialist label does not prove judicial independence.
- **Named evidence:** CAT under the Administrative Tribunals Act, 1985 is institutionally separate from a departmental appeal.
- **Analysis:** Independent adjudication matters because government is often a repeat litigant before service tribunals.
- **Qualification:** CAT remains statutory and its orders remain constitutionally reviewable.

EVIDENCE BANK

- CAT: statutory adjudicatory tribunal.
- Departmental appeal: executive reconsideration, ordinarily exhausted before CAT under Section 20.

- High Court: constitutional court retaining Articles 226/227 review.

PRELIMS TRAP

Trap: Do not treat every quasi-judicial body, regulator or departmental appellate authority as a tribunal.

MAINS USE

Open a tribunal answer by identifying the legal source and the function transferred, then test independence and review.

MINI RECAP

Source decides status; function decides procedural duty; constitutional courts retain the final supervisory floor.

SESSION 2 - WHY TRIBUNALS EMERGED: INSTITUTIONAL PROBLEM AND CHRONOLOGY

DEFINITION / WHAT THIS IS CALLED

Tribunalisation is legislative creation of specialised adjudicatory forums for defined classes of disputes, usually to combine expertise, speed, simpler procedure and access.

VISUAL FIRST

HIGH-VOLUME / TECHNICAL DISPUTES

-> specialist forum proposal

1976 -> 42nd Amendment inserts Part XIV-A

1985 -> Administrative Tribunals Act; CAT architecture

1987 -> S.P. Sampath Kumar: effective alternative context

1997 -> L. Chandra Kumar: High Court review restored

2010-2021 -> independence and appointments line

2021 -> rationalisation plus contested common service framework

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

India's tribunal project moved from an alternative-to-High-Court model toward specialist first instance under constitutional supervision.

MUST-WRITE KEYWORDS

tribunalisation · specialisation · 42nd Amendment · Part XIV-A · supplemental forum

TEACHING AND EXAM LINK

The 42nd Amendment Act, 1976 inserted Part XIV-A containing Articles 323A and 323B. Parliament enacted the Administrative Tribunals Act, 1985 under Article 323A. The constitutional story then changed through case law: S.P. Sampath Kumar accepted substitution only if the alternative was effective; L. Chandra Kumar made tribunals supplemental by restoring constitutional-court scrutiny; R. Gandhi, Rojer Mathew and the Madras Bar Association decisions focused on decisional independence and institutional design.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Tribunals respond to docket and expertise problems.
- **Named evidence:** Part XIV-A and the 1985 Act supplied constitutional and statutory architecture.
- **Analysis:** A specialist forum can improve first-instance quality and relieve courts only if staffed and independent.
- **Qualification:** The chronology does not prove that every tribunal is created under Article 323A or 323B.

EVIDENCE BANK

- 42nd Amendment Act, 1976.
- Administrative Tribunals Act, 1985.
- L. Chandra Kumar (1997).

PRELIMS TRAP

Trap: Do not cite the 42nd Amendment as itself creating CAT; CAT is created by parliamentary statute.

MAINS USE

Use chronology to show the shift from substitution to supplementation.

MINI RECAP

Need explains creation; doctrine explains limits; capacity determines performance.

SESSION 3 - ARTICLE 323A(1): FIELD, PERSONS AND COMPETENT LEGISLATURE

DEFINITION / WHAT THIS IS CALLED

Article 323A(1) authorises Parliament to provide by law for administrative tribunals adjudicating disputes and complaints about recruitment and conditions of service in specified public employment.

VISUAL FIRST

PARLIAMENT BY LAW

- > disputes/complaints
- > recruitment + conditions of service
- > persons appointed to services/posts connected with:
 - Union | State | local/other Indian authority | authority under GoI control
 - | government-owned/controlled corporation
- > actual coverage depends on implementing statute

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Article 323A is Parliament-only and service-specific: broader in covered public employers than 'Central Government employees' but narrower in subject than Article 323B.

MUST-WRITE KEYWORDS

Parliament only · recruitment · conditions of service · public services and posts · government-controlled corporation

TEACHING AND EXAM LINK

Clause (1) is enabling, not self-executing. Its constitutional field includes persons appointed to public services and posts connected with Union or State affairs, local or other authorities in India or under Government of India control, and government-owned or controlled corporations. The Administrative Tribunals Act determines which disputes and bodies actually enter CAT, SAT or JAT jurisdiction.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Article 323A allocates a defined service-law field to parliamentary design.
- **Named evidence:** The clause expressly names recruitment and conditions of service across several public-employer categories.
- **Analysis:** This permits coherent specialist service adjudication beyond a single ministry.
- **Qualification:** A constitutional possibility is not identical to present statutory coverage or notification.

EVIDENCE BANK

- Article 323A(1) text.
- Sections 14-16 of the 1985 Act.

PRELIMS TRAP

Trap: Do not say State legislatures can enact an Article 323A tribunal law; Parliament is the law-maker.

MAINS USE

In comparison, state subject, law-maker and implementation separately.

MINI RECAP

323A(1) = Parliament + public-service recruitment/service conditions + legislation needed.

SESSION 4 - ARTICLE 323A(2)(A)-(C): ESTABLISHMENT, POWERS AND PROCEDURE

DEFINITION / WHAT THIS IS CALLED

Article 323A(2) lists what Parliament's implementing law may contain; sub-clauses (a)-(c) concern institutional geography, jurisdiction and procedure.

VISUAL FIRST

323A(2)(a) -> Union tribunal + separate State tribunal or tribunal for 2+ States

323A(2)(b) -> jurisdiction + powers + authority, including contempt

323A(2)(c) -> procedure, including limitation + rules of evidence

RESULT -> constitutional permission; statutory detail remains decisive

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

The Constitution permits a Union tribunal and separate or shared State arrangements, while leaving concrete jurisdiction and procedure to parliamentary law.

MUST-WRITE KEYWORDS

Union tribunal · State tribunal · two or more States · contempt · limitation and evidence

TEACHING AND EXAM LINK

Sub-clause (a) authorises an administrative tribunal for the Union and a separate tribunal for each State or for two or more States. Sub-clause (b) permits specification of jurisdiction, powers and authority, expressly including contempt. Sub-clause (c) permits procedural rules, expressly including limitation and evidence. These clauses explain why tribunal procedure may differ from ordinary civil litigation without becoming lawless.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Institutional flexibility is built into Article 323A.
- **Named evidence:** Sub-clauses (a)-(c) expressly cover geography, contempt, limitation and evidence.
- **Analysis:** Parliament can tailor a specialist system rather than reproduce every court rule.
- **Qualification:** Natural justice and constitutional review still constrain statutory choices.

EVIDENCE BANK

- Article 323A(2)(a)-(c).
- Sections 4, 17, 21 and 22 of the 1985 Act.

PRELIMS TRAP

Trap: Do not infer that the Constitution itself fixes benches, limitation periods or evidentiary standards.

MAINS USE

Quote the sub-clause theme, then connect it to the matching statutory section.

MINI RECAP

Constitution authorises design; statute operationalises it; fairness reviews it.

SESSION 5 - ARTICLE 323A(2)(D)-(G) AND CLAUSE (3): TEXT VERSUS DOCTRINE

DEFINITION / WHAT THIS IS CALLED

The remaining clauses address court exclusion, transfer, Article 371D orders, incidental provisions and overriding effect.

VISUAL FIRST

TEXTUAL DESIGN

(d) exclude all courts except Supreme Court Art 136
(e) transfer pending cases
(f) amend/repeal President's Art 371D(3) order
(g) fees + enforcement + speedy disposal + incidental provisions
(3) notwithstanding other constitutional/law provisions
CURRENT DOCTRINE -> 226/227 and 32 review cannot be excluded

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

The exclusion clause remains constitutional text, but L. Chandra Kumar makes exclusion of Articles 226/227 and 32 judicial review legally ineffective.

MUST-WRITE KEYWORDS

exclusion clause · Article 136 · transfer of pending cases · Article 371D(3) · notwithstanding clause

TEACHING AND EXAM LINK

Sub-clause (d) contemplated exclusion of all courts except Article 136. Sub-clause (e) permits transfer of cases that would fall within tribunal jurisdiction. Sub-clause (f) permits repeal or amendment of an order under Article 371D(3). Sub-clause (g) permits supplemental, incidental and consequential provisions, including fees, effective functioning, speedy disposal and enforcement. Clause (3) gives Article 323A overriding textual force. Yet a notwithstanding formula cannot defeat the basic structure identified in L. Chandra Kumar.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Constitutional text once pursued jurisdictional substitution.
- **Named evidence:** Article 323A(2)(d) expressly preserved only Article 136 in its exclusion design.
- **Analysis:** L. Chandra Kumar reconfigured the system because constitutional judicial review is basic structure.
- **Qualification:** The text should be described accurately while current legal effect is separately stated.

EVIDENCE BANK

- Article 323A(2)(d)-(g), (3).
- L. Chandra Kumar v Union of India (1997).

PRELIMS TRAP

Trap: Do not erase clause (d) from the text or present it as operative against High Courts today.

MAINS USE

A high-scoring answer distinguishes enacted text from binding constitutional interpretation.

MINI RECAP

Text proposed exclusion; doctrine preserves review; pending-case transfer survives within constitutional limits.

SESSION 6 - ARTICLE 323B(1)-(2): APPROPRIATE LEGISLATURE AND SUBJECTS

DEFINITION / WHAT THIS IS CALLED

Article 323B enables the appropriate legislature to create tribunals for disputes, complaints or offences concerning listed matters within that legislature's competence.

VISUAL FIRST

323B(1): appropriate legislature + competence
323B(2): TAX | FOREX/IMPORT/EXPORT | INDUSTRIAL/LABOUR
LAND REFORM | URBAN PROPERTY CEILING | ELECTIONS
FOODSTUFFS/ESSENTIAL GOODS/PRICE CONTROL | RENT/TENANCY
OFFENCES + FEES | INCIDENTAL MATTERS

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Unlike Article 323A's single service field, Article 323B is a multi-subject enabling power tied to ordinary legislative competence.

MUST-WRITE KEYWORDS

appropriate Legislature · legislative competence · taxation · land reform · rent and tenancy

TEACHING AND EXAM LINK

The fields are tax; foreign exchange and import/export across customs frontiers; industrial and labour disputes; specified land reforms; urban-property ceiling; elections to Parliament and State legislatures subject to the constitutional wording; production, procurement, supply and distribution of foodstuffs and declared essential goods with price control; rent regulation and tenancy; offences and fees connected with these fields; and incidental matters. Rent and tenancy were added by the 75th Amendment Act, 1994.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Article 323B does not confer a free-standing tribunal power over any subject.
- **Named evidence:** Clauses (1)-(2) tie tribunals to an enumerated matter and legislative competence.
- **Analysis:** This preserves federal allocation while permitting subject specialisation.
- **Qualification:** A tribunal may still rest wholly on an ordinary legislative entry rather than being labelled an Article 323B body.

EVIDENCE BANK

- Article 323B(1)-(2).
- Constitution (Seventy-fifth Amendment) Act, 1994 for clause (h).

PRELIMS TRAP

Trap: Do not call every tax, company, environment, telecom or armed-forces tribunal an Article 323B tribunal automatically.

MAINS USE

List representative fields, but show the competence condition and enabling character.

MINI RECAP

323B = enumerated subject + competent legislature + implementing law, not automatic creation.

SESSION 7 - ARTICLE 323B(3)-(4): HIERARCHY, PROCEDURE AND EXCLUSION

DEFINITION / WHAT THIS IS CALLED

Article 323B(3) describes permissible institutional and procedural provisions; clause (4) gives overriding textual effect.

VISUAL FIRST

323B(3)(a) hierarchy
 (b) jurisdiction/powers/authority incl contempt
 (c) procedure incl limitation/evidence
 (d) court exclusion except Art 136 [text]
 (e) pending-case transfer
 (f) fees/enforcement/speed/incidental
323B(4) notwithstanding clause
L. CHANDRA KUMAR -> exclusion cannot oust 226/227 or 32

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Article 323B expressly permits a hierarchy of tribunals, but current doctrine still subjects tribunal decisions to constitutional-court review.

MUST-WRITE KEYWORDS

hierarchy of tribunals · jurisdiction and authority · rules of evidence · pending-case transfer · supplemental provisions

TEACHING AND EXAM LINK

The hierarchy wording is a key contrast with Article 323A. The rest closely parallels Article 323A: jurisdiction and contempt; procedure, limitation and evidence; textual court exclusion; transfer; and supplemental provisions. These powers belong to the legislature making the tribunal law, not to a tribunal by constitutional implication.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** A hierarchy can organise specialist appeals without granting constitutional supremacy.
- **Named evidence:** Article 323B(3)(a) uses the express word 'hierarchy'.
- **Analysis:** Layering may improve error correction within a sector.
- **Qualification:** An internal hierarchy cannot displace High Court judicial review after L. Chandra Kumar.

EVIDENCE BANK

- Article 323B(3)-(4).
- L. Chandra Kumar (1997).

PRELIMS TRAP

Trap: Do not equate an Article 323B hierarchy with the constitutional court hierarchy.

MAINS USE

Use hierarchy/multiplicity as the sharpest Prelims distinction from Article 323A.

MINI RECAP

Internal specialist appeal may exist; external constitutional supervision remains.

SESSION 8 - 323A VERSUS 323B: COMPLETE DISCRIMINATION MATRIX

DEFINITION / WHAT THIS IS CALLED

The two Articles share an enabling technique but differ in subject, law-maker and express institutional pattern.

VISUAL FIRST

AXIS	323A	323B
FIELD	recruitment/service	listed subjects
LAW-MAKER	Parliament only	appropriate Legislature
PATTERN	Union/State/shared tribunals	hierarchy permitted
OFFENCES	disputes/complaints	disputes/complaints/offences
COMMON	contempt, procedure, limitation, evidence, transfer, exclusion text	
CURRENT FLOOR	High Court/Supreme Court judicial review survives	

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Article 323A is the public-service tribunal provision; Article 323B is the competent-legislature provision for multiple listed fields.

MUST-WRITE KEYWORDS

service-specific · subject-specific · Parliament only · appropriate Legislature · hierarchy

TEACHING AND EXAM LINK

Both were inserted by the 42nd Amendment Act, 1976 in Part XIV-A. Both permit jurisdiction, contempt, procedural, evidence, limitation, transfer, fee, enforcement and exclusion provisions. Yet their coverage is not interchangeable. Identify the field first, then the competent legislature, then the parent statute and appeal structure.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Shared drafting does not mean shared subject ownership.
- **Named evidence:** The Constitution uses Parliament-only language in 323A and 'appropriate Legislature' in 323B.
- **Analysis:** The distinction prevents federal and institutional category errors.
- **Qualification:** Current court review is a common post-1997 qualification.

EVIDENCE BANK

- Articles 323A and 323B.
- 42nd Amendment Act, 1976.

PRELIMS TRAP

Trap: Do not reduce the distinction to 'one tribunal versus many'; field, legislature and design language are decisive.

MAINS USE

Build a three-column comparison: subject, law-maker, pattern; then add common limits.

MINI RECAP

Same Part and similar tools; different fields and legislatures; same basic-structure floor.

SESSION 9 - ADMINISTRATIVE TRIBUNALS ACT, 1985: CAT, SAT AND JAT

DEFINITION / WHAT THIS IS CALLED

The 1985 Act is Parliament's principal Article 323A legislation establishing CAT and enabling State and Joint Administrative Tribunals.

VISUAL FIRST

SECTION 4

Central Government -> establishes CAT

State Government request -> Central Government may establish SAT

2+ State requests -> Joint Administrative Tribunal agreement/order

JAT -> exercises relevant SAT jurisdiction for participating States

BENCHES/COMPOSITION -> current statute and rules, not Article 323A alone

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

CAT, SAT and JAT are statutory service-law forums; none becomes a constitutional body merely because Article 323A authorises the legislation.

MUST-WRITE KEYWORDS

Section 4 · CAT · SAT · Joint Administrative Tribunal · State request

TEACHING AND EXAM LINK

Section 4 supplies the institutional routes. CAT is the Union forum. A SAT follows the statutory request-and-notification route. A JAT allows two or more States to share the tribunal structure. Later amendments changed composition and service-condition provisions, so older descriptions of Vice-Chairmen or fixed qualifications require current-law checking.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Article 323A needs statutory implementation.
- **Named evidence:** Section 4 converts the constitutional option into CAT/SAT/JAT institutions.
- **Analysis:** Shared tribunals can pool capacity where separate State systems are inefficient.
- **Qualification:** Existence and jurisdiction still depend on valid notifications and current law.

EVIDENCE BANK

- Administrative Tribunals Act, 1985, Section 4.
- Article 323A(2)(a).

PRELIMS TRAP

Trap: Do not claim every State has a functioning SAT or that CAT is a constitutional body.

MAINS USE

Tie each institution to Section 4 and its territorial/service field.

MINI RECAP

Constitution enables; Section 4 establishes; notifications determine operation.

SESSION 10 - SECTION 2 EXCLUSIONS

DEFINITION / WHAT THIS IS CALLED

Section 2 excludes specified categories from the Administrative Tribunals Act despite the breadth of Article 323A.

VISUAL FIRST

ACT DOES NOT APPLY TO

- (a) member of naval, military, air or other armed forces of Union
 - (c) officer/servant of Supreme Court, High Court or subordinate court
 - (d) secretarial staff of Parliament, State Legislature or UT Legislature
- NOTE: former clause (b) was omitted; do not revive it from an old edition

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

The Act's exclusions are status-based and must be read exactly; public employment alone does not establish CAT jurisdiction.

MUST-WRITE KEYWORDS

armed forces · Supreme Court staff · High Court staff · subordinate-court staff · legislative secretariat

TEACHING AND EXAM LINK

Armed-forces members are excluded, but civilian posts connected with defence may fall within Section 14. Judicial-establishment staff are excluded: the text is not confined to Supreme Court and High Court employees but includes courts subordinate to High Courts. Legislative secretariat categories are separately excluded. The exclusion inquiry precedes merits.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Jurisdiction begins with coverage and exclusions, not the grievance's seriousness.
- **Named evidence:** Section 2 expressly removes armed forces and judicial/legislative secretariat categories.
- **Analysis:** This protects distinct constitutional and service structures from automatic CAT channeling.
- **Qualification:** Other remedies may remain; exclusion from CAT is not denial of all judicial remedy.

EVIDENCE BANK

- Administrative Tribunals Act, 1985, Section 2.

PRELIMS TRAP

Trap: Do not confuse armed-forces members with civilian defence employees, and do not omit subordinate-court staff.

MAINS USE

Write: employer/post -> Section 14 coverage -> Section 2 exclusion -> notification.

MINI RECAP

Public employee is necessary but not sufficient: exact statutory identity controls.

SESSION 11 - SECTION 14: CAT JURISDICTION

DEFINITION / WHAT THIS IS CALLED

Section 14 transfers to CAT defined recruitment and service-matter jurisdiction formerly exercisable by courts other than the Supreme Court for covered Union-linked employment.

VISUAL FIRST

SECTION 14 CHECK

1. recruitment to AIS / Union civil service / Union civil post / defence civilian post?
2. service matter of a covered member/person?
3. local authority/corporation/society covered by statutory notification?
4. Section 2 exclusion absent?

YES -> Original Application before CAT; NO -> identify correct forum

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

CAT has original statutory jurisdiction over covered central service matters, not general jurisdiction over every dispute involving the Union.

MUST-WRITE KEYWORDS

Section 14 · recruitment · service matters · All-India Service · notified body

TEACHING AND EXAM LINK

Section 14 covers recruitment and matters concerning recruitment to All-India Services, Union civil services and civil posts under the Union, including civilian defence posts, and service matters of covered persons. Extensions may apply to local or other authorities, corporations or societies owned or controlled by government. Section 3(q) includes remuneration, tenure, confirmation, seniority, promotion, reversion, premature retirement, superannuation, discipline and other service conditions.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** CAT jurisdiction is conferred, limited and fact-sensitive.
- **Named evidence:** Sections 3(q) and 14 identify covered service matters and employment relationships.
- **Analysis:** Specialisation permits consistent service-law adjudication.
- **Qualification:** Notification, exclusion and precise relief can change the forum.

EVIDENCE BANK

- Sections 3(q) and 14 of the 1985 Act.

PRELIMS TRAP

Trap: Do not say every PSU, society or government-funded employee automatically falls within CAT.

MAINS USE

Use a jurisdiction checklist rather than a broad 'central employee' formula.

MINI RECAP

Section 14 = covered relationship + service matter + no exclusion + required notification.

SESSION 12 - SECTIONS 15-16: STATE AND JOINT JURISDICTION

DEFINITION / WHAT THIS IS CALLED

Sections 15 and 16 allocate State-service jurisdiction to SATs and participating-State jurisdiction to JATs.

VISUAL FIRST

STATE SERVICE DISPUTE

- > functioning SAT? -> Section 15 coverage -> SAT
- > participating Joint Tribunal? -> Section 16/JAT arrangement
- > neither / excluded? -> ordinary constitutional or statutory route

NEVER ASSUME a uniform all-India SAT map

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

State and Joint Tribunals mirror CAT's specialist logic, but their reach follows the Act, establishment order and State-linked coverage.

MUST-WRITE KEYWORDS

Section 15 · Section 16 · State civil service · State-controlled body · participating States

TEACHING AND EXAM LINK

Section 15 broadly parallels Section 14 for recruitment and service matters connected with State affairs and covered State-controlled authorities, corporations or societies. Section 16 gives a JAT jurisdiction and powers exercisable by the relevant SATs for participating States. States vary in establishment and abolition; current existence must be verified.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Federal variation is built into the statutory architecture.
- **Named evidence:** Sections 15-16 and Section 4 allow State-specific and shared arrangements.
- **Analysis:** A JAT may pool expertise and infrastructure.
- **Qualification:** Uniform legal labels do not guarantee uniform capacity or present existence.

EVIDENCE BANK

- Sections 15 and 16 of the 1985 Act.

PRELIMS TRAP

Trap: Do not state that State legislatures create SATs under Article 323A; the parliamentary Act supplies the route.

MAINS USE

Distinguish constitutional competence from statutory request and establishment.

MINI RECAP

CAT is central; SAT State-linked; JAT shared; each remains statute-bound.

SESSION 13 - APPLICATIONS, EXHAUSTION, LIMITATION AND TRANSFER

DEFINITION / WHAT THIS IS CALLED

The Act channels service disputes through an Original Application, ordinarily after departmental remedies, within a limitation regime; qualifying pending cases may transfer on tribunal establishment.

VISUAL FIRST

ADVERSE SERVICE ORDER

- > departmental remedy ordinarily exhausted (s20)
- > Original Application
- > limitation test (s21; sufficient-cause condonation)
- > notice/record/hearing/order

ESTABLISHMENT TRANSITION

- > qualifying pending matter -> statutory transfer under s29/29A

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Tribunal access is simplified but not timeless or detached from the administrative decision sequence.

MUST-WRITE KEYWORDS

Original Application · Section 20 · Section 21 · exhaustion · Section 29 transfer

TEACHING AND EXAM LINK

Section 20 ordinarily requires available departmental remedies before admission, while preventing indefinite administrative silence from becoming a barrier. Section 21 prescribes limitation and permits admission after the period where sufficient cause is shown. Sections 29 and 29A govern qualifying pending-case transfers in specified situations. Transfer cannot extinguish the High Court's preserved constitutional jurisdiction.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Procedural gateways balance accessibility with orderly administration.
- **Named evidence:** Sections 20, 21 and 29 connect departmental decision, timely application and forum transition.
- **Analysis:** A developed record sharpens tribunal review and transfer prevents duplication.
- **Qualification:** Exhaustion and limitation have statutory qualifications; constitutional review survives.

EVIDENCE BANK

- Sections 20, 21, 29 and 29A of the 1985 Act.

PRELIMS TRAP

Trap: Do not say every departmental appeal must reach a final decision regardless of statutory delay or exception.

MAINS USE

Mention limitation with 'statutory period and sufficient-cause condonation' unless exact dates are demanded.

MINI RECAP

Channel, time and transfer are statutory, qualified and reviewable.

SESSION 14 - SECTION 22: NATURAL JUSTICE, PROCEDURE AND EVIDENCE

DEFINITION / WHAT THIS IS CALLED

Section 22 frees tribunals from rigid Code of Civil Procedure application while binding them to natural justice and conferring specified civil-court powers.

VISUAL FIRST

JURISDICTION -> NOTICE -> DISCLOSURE -> REPLY
-> IMPARTIAL HEARING -> EVIDENCE TEST
-> REASONED ORDER

TOOLS: summon | documents | affidavits | commissions | review | ex parte/default control
LIMIT: flexibility != arbitrariness; Evidence Act is not automatically strict

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Flexible procedure means proportionate specialist procedure, not freedom from notice, hearing, impartiality, evidence testing or reasons.

MUST-WRITE KEYWORDS

Section 22 · natural justice · not bound by CPC · civil-court powers · speaking order

TEACHING AND EXAM LINK

The tribunal regulates procedure subject to the Act and rules. Section 22 says it is guided by natural justice and not bound by the CPC. For specified matters it has powers resembling a civil court: summoning, document production, affidavits, public records, commissions, review and setting aside dismissal or ex parte orders. The Evidence Act is not mechanically applied as in every ordinary trial, but relevance, reliability, fair disclosure and reasoned evaluation remain essential.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Procedural informality can lower cost without lowering fairness.
- **Named evidence:** Section 22 combines natural justice with enumerated civil-court powers.
- **Analysis:** A tailored hearing can focus on service records efficiently.
- **Qualification:** Bias, prejudice or unreasoned decision remains reviewable.

EVIDENCE BANK

- Section 22 of the 1985 Act.
- Audi alteram partem and nemo iudex principles.

PRELIMS TRAP

Trap: Do not claim strict CPC/Evidence Act application or, conversely, irrelevance of evidentiary fairness.

MAINS USE

Write the equation: flexibility + statutory powers + natural justice + reasons.

MINI RECAP

Less formality, not less legality.

SESSION 15 - REVIEW, EXECUTION, INTERIM RELIEF AND CONTEMPT

DEFINITION / WHAT THIS IS CALLED

The Act gives tribunals bounded powers to review, enforce and protect proceedings; these are statutory, not inherent constitutional-court powers.

VISUAL FIRST

TRIBUNAL ORDER

- +--> correction/review: statutory grounds and procedure
- +--> execution: s27 machinery
- +--> interim order: jurisdiction + fairness + statutory conditions
- `--> contempt: s17 + Contempt of Courts Act adaptations
 - > punishment appeal follows special statutory route to Supreme Court

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Ordinary merits review, enforcement and contempt must be kept on separate legal tracks.

MUST-WRITE KEYWORDS

review power · Section 27 · Section 17 contempt · interim relief · T. Sudhakar Prasad

TEACHING AND EXAM LINK

Section 22(3)(f) recognises review power, but review is not an unrestricted second hearing. Section 27 addresses execution of final orders. Interim relief remains bounded by jurisdiction and safeguards. Section 17 gives an administrative tribunal the same contempt jurisdiction, powers and authority as a High Court, with modifications. T. Sudhakar Prasad (2001) held that this survived L. Chandra Kumar; an appeal from punishment follows Section 19 of the Contempt of Courts Act to the Supreme Court. That special appeal does not replace High Court review of ordinary merits orders.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Enforcement authority is necessary for effective adjudication.
- **Named evidence:** Sections 17, 22 and 27 plus T. Sudhakar Prasad distinguish contempt, review and execution.
- **Analysis:** Without these powers tribunal orders could be ignored or paralysed.
- **Qualification:** Each power remains jurisdiction-limited; contempt has its own appeal.

EVIDENCE BANK

- Sections 17, 22(3)(f), 27.
- T. Sudhakar Prasad v Government of Andhra Pradesh (2001).

PRELIMS TRAP

Trap: Do not route an ordinary CAT merits order directly to the Supreme Court merely because contempt appeals do so.

MAINS USE

Name the particular power and route; never write one generic 'appeal lies'.

MINI RECAP

Review corrects bounded error; execution secures compliance; contempt protects authority.

SESSION 16 - ORIGINAL JURISDICTION, JUDICIAL REVIEW, APPEAL AND PRECEDENT

DEFINITION / WHAT THIS IS CALLED

Original jurisdiction is first-instance statutory authority; judicial review tests legality; statutory appeal exists only by law; Article 136 special leave is discretionary.

VISUAL FIRST

COVERED SERVICE CLAIM -> CAT/SAT/JAT original jurisdiction
TRIBUNAL MERITS ORDER -> High Court Division Bench, Arts 226/227
HIGH COURT JUDGMENT -> possible Art 136 special leave
SPECIAL STATUTORY APPEAL -> only if parent law creates it
PRECEDENT -> Supreme Court binding; territorial High Court controls; bench discipline

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

After L. Chandra Kumar, the normal chain is tribunal first instance, High Court Division Bench scrutiny, then possible Supreme Court special leave.

MUST-WRITE KEYWORDS

original jurisdiction · judicial review · statutory appeal · Article 136 · precedent

TEACHING AND EXAM LINK

A writ petition is not a statutory appeal, and Article 136 is not an appeal as of right. Tribunal benches follow Supreme Court law under Article 141 and controlling High Court law; coordinate benches ordinarily follow earlier coordinate decisions or refer disagreement to a larger bench. Tribunal decisions can have persuasive or institutionally binding force within this discipline; it is false that they are never precedential. They cannot overrule constitutional courts.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Correct route analysis prevents finality and automatic-appeal myths.
- **Named evidence:** L. Chandra Kumar specifies Division Bench scrutiny; Article 136 remains discretionary.
- **Analysis:** Precedent stabilises service law across benches.
- **Qualification:** Territorial differences and parent statutes require qualification.

EVIDENCE BANK

- L. Chandra Kumar (1997).
- Articles 141 and 136.

PRELIMS TRAP

Trap: Do not describe High Court review as a statutory appeal or say every tribunal order bypasses the High Court.

MAINS USE

Identify whether the next step is review, appeal, reference or special leave.

MINI RECAP

First instance, review and appeal are different powers; precedent runs downward.

SESSION 17 - S.P. SAMPATH KUMAR (1987)

DEFINITION / WHAT THIS IS CALLED

S.P. Sampath Kumar assessed whether the 1985 scheme could replace High Court service adjudication under the then exclusion model.

VISUAL FIRST

HIGH COURT JURISDICTION EXCLUDED BY DESIGN

- > Is tribunal equally effective?
- > independence + competence + judicial approach required
- > Act sustained with corrective safeguards

1997 DOCTRINAL SHIFT

- > L. Chandra Kumar restores High Court scrutiny

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Sampath Kumar is conditional substitution through an effective alternative institutional mechanism, not today's last word on High Court exclusion.

MUST-WRITE KEYWORDS

effective alternative · institutional mechanism · judicial review · selection independence · conditional substitution

TEACHING AND EXAM LINK

The Court treated judicial review as foundational and accepted an alternative mechanism only if it was no less effective than the High Court. It stressed composition and selection safeguards, including meaningful judicial involvement. Use the judgment historically: it validated tribunalisation in an alternative-mechanism framework, but L. Chandra Kumar later rejected substitution for High Courts in constitutional review.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Substitution was conditional on functional equivalence.
- **Named evidence:** Sampath Kumar linked validity to efficacy, independence and judicial character.
- **Analysis:** This made appointment design a constitutional condition.
- **Qualification:** Its exclusion conclusion must now be read through L. Chandra Kumar.

EVIDENCE BANK

- S.P. Sampath Kumar v Union of India (1987).

PRELIMS TRAP

Trap: Do not cite Sampath Kumar alone to claim High Court review may presently be excluded.

MAINS USE

Use it as stage one in a doctrinal evolution answer.

MINI RECAP

1987: effective alternative required; 1997: alternative cannot replace constitutional review.

SESSION 18 - L. CHANDRA KUMAR (1997)

DEFINITION / WHAT THIS IS CALLED

The seven-judge decision held judicial review under Articles 226/227 and 32 to be part of the basic structure and non-excludable by tribunal arrangements.

VISUAL FIRST

TRIBUNAL FIRST INSTANCE

- > may examine statutory/subordinate-legislation validity
- > parent-statute vires challenge goes to constitutional court
- > merits order subject to territorial HC Division Bench scrutiny
- > Supreme Court thereafter through constitutional route

RESULT: supplement, not substitute

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Tribunals remain first-instance forums in their fields, but decisions are scrutinised by a Division Bench of the territorial High Court.

MUST-WRITE KEYWORDS

basic structure · Articles 226/227 · Article 32 · Division Bench · first instance

TEACHING AND EXAM LINK

The Court invalidated Article 323A(2)(d), Article 323B(3)(d) and statutory exclusion clauses to the extent they ousted High Court and Supreme Court constitutional review. It retained tribunals as first-instance forums, including for many constitutional questions, because specialist adjudication can assist courts. Tribunals cannot rule on the validity of their own parent statute as the final or appropriate first forum.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Judicial review is a structural guarantee, not merely an appeal facility.
- **Named evidence:** L. Chandra Kumar protected Articles 226/227 and 32 while preserving tribunal first instance.
- **Analysis:** The design combines specialist development with constitutional supervision.
- **Qualification:** An extra tier can cause delay, so first-instance quality is essential.

EVIDENCE BANK

- L. Chandra Kumar v Union of India (1997), seven-judge bench.

PRELIMS TRAP

Trap: Do not say the case abolished tribunals, barred constitutional questions, or made Article 136 the routine first appeal.

MAINS USE

This is the controlling case for validity and review.

MINI RECAP

Specialist first bite; High Court constitutional second look; Supreme Court final role.

SESSION 19 - R. GANDHI (2010) AND NATIONAL TAX TRIBUNAL (2014)

DEFINITION / WHAT THIS IS CALLED

The Madras Bar Association line tests whether a tribunal taking judicial work has qualifications, composition, tenure and administration compatible with independence.

VISUAL FIRST

UOI v R. GANDHI (2010)

company-law transfer permissible -> defective safeguards corrected

MADRAS BAR ASSOCIATION (2014)

National Tax Tribunal design invalid -> High Court substantial-law function

+ executive-influenced design + unsuitable member standards

RULE: technical expertise supplements; it does not erase judicial standards

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Parliament may transfer suitable judicial functions, but cannot staff or control the replacement in a manner inferior to the function transferred.

MUST-WRITE KEYWORDS

functional equivalence · judicial members · technical members · separation of powers · National Tax Tribunal

TEACHING AND EXAM LINK

Union of India v R. Gandhi upheld legislative competence to create NCLT/NCLAT while requiring correction of provisions inconsistent with independence. Technical members must contribute relevant expertise; they cannot replace judicial capacity wherever core judicial work is transferred. In 2014, the Court invalidated the National Tax Tribunal design because it displaced High Court adjudication on substantial questions of law without equivalent safeguards.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Institutional equivalence follows function, not the word tribunal.
- **Named evidence:** R. Gandhi and the 2014 decision compare transferred work with qualifications and control.
- **Analysis:** This prevents convenience from diluting adjudicatory independence.
- **Qualification:** The cases do not outlaw technical members or all tribunalisation.

EVIDENCE BANK

- Union of India v R. Gandhi, President, Madras Bar Association (2010).
- Madras Bar Association v Union of India (2014), National Tax Tribunal.

PRELIMS TRAP

Trap: Do not claim an executive technical member can replace judicial adjudication merely because the dispute is specialised.

MAINS USE

Apply: what work moved, who decides, who selects, how secure is tenure, who administers.

MINI RECAP

Specialisation is valid; executive substitution for judicial competence is not.

SESSION 20 - ROGER MATHEW, MADRAS BAR ASSOCIATION AND THE 2021 ACT

DEFINITION / WHAT THIS IS CALLED

Modern independence cases scrutinise common executive-made service conditions and repeated legislative reproduction of invalid defects.

VISUAL FIRST

FINANCE ACT 2017 -> common rule-making + mergers
2017 RULES -> struck down in ROJER MATHEW (2019)
2020 RULES -> tested in MADRAS BAR ASSOCIATION (2020)
2021 ORDINANCE/ACT -> rationalisation + common conditions
MADRAS BAR ASSOCIATION (2021) -> reproduced defects invalidated
CURRENT METHOD -> parent Act + surviving law/rules + binding judgments

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

The present framework is layered and judgment-controlled, not the face value of invalidated 2021 provisions.

MUST-WRITE KEYWORDS

Finance Act 2017 · Rojer Mathew · Tribunal Rules · four-year tenure · minimum age fifty

TEACHING AND EXAM LINK

Rojer Mathew struck down the 2017 Rules for independence defects and referred the Finance Act Money Bill issue to a larger bench. The 2020 decision insisted on a more independent selection architecture and adequate tenure. The 2021 decision invalidated provisions concerning the fifty-year minimum age, four-year tenure and executive choice from a two-name recommendation arrangement. The Tribunal Reforms Act, 2021 also abolished specified appellate bodies and transferred functions. It does not govern every tribunal indiscriminately; applicability follows its Schedule, amendments, rules and the parent Act.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Repeated appointments litigation reveals a structural independence problem.
- **Named evidence:** Rojer Mathew and the 2020-2021 decisions tested executive control over selection and tenure.
- **Analysis:** Secure conditions attract competent members and reduce reappointment dependence.
- **Qualification:** Invalidated clauses are not current law; surviving rules remain tribunal-specific.

EVIDENCE BANK

- Rojer Mathew v South Indian Bank (2019).
- Madras Bar Association v Union of India (2020 and 2021).
- Tribunal Reforms Act, 2021.

PRELIMS TRAP

Trap: Do not state invalidated minimum age, four-year tenure or executive shortlist discretion as settled current law.

MAINS USE

Separate rationalisation of bodies from validity of member-service conditions.

MINI RECAP

2021 changed the map; judgments control independence; parent statutes still matter.

SESSION 21 - CURRENT ARCHITECTURE: CAT, NGT, NCLT, AFT AND TDSAT

DEFINITION / WHAT THIS IS CALLED

India has multiple tribunal families created by distinct statutes; common constitutional principles do not erase different legal bases, functions or routes.

VISUAL FIRST

BODY	LEGAL BASIS	CORE FUNCTION
CAT	Administrative Tribunals Act 1985	covered public-service disputes
NGT	National Green Tribunal Act 2010	environmental civil matters/appeals
NCLT	Companies Act 2013 / IBC routes	company/insolvency adjudication
AFT	Armed Forces Tribunal Act 2007	service matters + court-martial appeals
TDSAT	TRAI Act 1997	telecom/broadcast disputes and appeals

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

CAT is the Article 323A service exemplar, while NGT, NCLT, AFT and TDSAT must be described through their parent statutes rather than automatically classified under Article 323B.

MUST-WRITE KEYWORDS

CAT · NGT · NCLT · AFT · TDSAT

TEACHING AND EXAM LINK

CAT possesses original service jurisdiction. NGT combines original environmental jurisdiction with statutory appellate functions. NCLT performs company-law and insolvency tasks. AFT deals with armed-forces service matters and court-martial appeals under a distinct statute, relevant because armed-forces members are excluded from the 1985 Act. TDSAT resolves specified telecom disputes and appeals. Membership and appellate structures differ.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Tribunal doctrine is common at the constitutional floor but plural statutorily.
- **Named evidence:** Five parent statutes allocate five different functions.
- **Analysis:** Specialisation can match procedure and expertise to dispute type.
- **Qualification:** No common label proves Article 323B origin, identical membership or identical High Court routing.

EVIDENCE BANK

- Administrative Tribunals Act 1985; NGT Act 2010; Companies Act 2013; AFT Act 2007; TRAI Act 1997.

PRELIMS TRAP

Trap: Do not infer that all tribunals follow the 1985 Act, CPC/Evidence Act rules or one appeal chain.

MAINS USE

A comparison table should include legal basis, function and next forum.

MINI RECAP

One constitutional floor, many parent statutes, different functions and routes.

SESSION 22 - BENEFITS: EXPERTISE, SPEED, ACCESS AND COURT RELIEF

DEFINITION / WHAT THIS IS CALLED

The functional case for tribunals is that a specialised, lower-formality forum can decide technical or repetitive disputes more consistently and accessibly.

VISUAL FIRST

SPECIALISED CASELOAD

- > trained judicial + domain members
- > focused procedure and records
- > potentially quicker, cheaper, consistent decisions
- > reduced first-instance load on courts

DEPENDENCIES: vacancies | infrastructure | access | reasons | review design

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

Tribunals are justified by demonstrated task-fit, not by a presumption that a new institution automatically disposes cases faster.

MUST-WRITE KEYWORDS

domain expertise · procedural flexibility · regional benches · consistency · court decongestion

TEACHING AND EXAM LINK

Service disputes often turn on recruitment rules, seniority lists, disciplinary procedure, pension and reservation doctrine. A focused bench can acquire repeat expertise. Regional benches and e-filing may reduce travel and transaction costs. Flexible procedure can narrow controversy. Well-reasoned orders improve the record available to a reviewing High Court.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Expertise can improve both speed and decisional quality.
- **Named evidence:** CAT's recurring service-law docket provides the institutional example.
- **Analysis:** Repeated exposure permits focused case management.
- **Qualification:** Benefits disappear where vacancies, poor infrastructure or weak reasons generate adjournment and remand.

EVIDENCE BANK

- CAT service-law jurisdiction under Section 14.
- L. Chandra Kumar's first-instance role.

PRELIMS TRAP

Trap: Do not present speed as inherent or assume an extra tribunal tier always reduces total time.

MAINS USE

Write benefits as causal chains with conditions, not slogans.

MINI RECAP

Expertise creates potential; institutional capacity converts it into outcomes.

SESSION 23 - PROBLEMS: VACANCIES, EXECUTIVE CONTROL AND FRAGMENTATION

DEFINITION / WHAT THIS IS CALLED

Tribunal failure can arise from weak independence and weak capacity even where constitutional and statutory design appears sound.

VISUAL FIRST

EXECUTIVE appoints/administers/funds + EXECUTIVE is frequent litigant
-> structural dependence
VACANCIES -> adjournment/pendency
FRAGMENTED statutes -> confusing routes/inconsistent standards
WEAK infrastructure/access -> exclusion
DIVERGENT BENCHES -> uncertainty/remands
REPEATED LITIGATION -> appointments cycle unstable

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

The key deficit is the gap between specialist promise and institutional conditions: appointments, fragmented administration and appeal design can reproduce court delay.

MUST-WRITE KEYWORDS

vacancies · executive litigant · sponsoring ministry · fragmented appeals · inconsistent precedent

TEACHING AND EXAM LINK

Vacancies reduce effective bench strength. Sponsoring-ministry control creates dependence risk because government may be a party. Separate administrative arrangements impede common data, staffing and infrastructure. Dispersed benches may generate inconsistent precedent. A poorly designed appeal can duplicate proceedings, while abolition can move workload to High Courts without judges, records or staff.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Independence and capacity are complementary.
- **Named evidence:** The R. Gandhi-Madras Bar Association line names selection and tenure; operational experience identifies vacancies and infrastructure.
- **Analysis:** A secure member without staff cannot dispose cases, and a staffed forum without independence lacks legitimacy.
- **Qualification:** Performance varies; avoid unsupported aggregate pendency numbers.

EVIDENCE BANK

- R. Gandhi (2010).
- Rojer Mathew (2019).
- Madras Bar Association decisions.

PRELIMS TRAP

Trap: Do not claim tribunal decisions are never precedential or rationalisation automatically cures fragmentation.

MAINS USE

Organise criticism under independence, capacity, access, coherence and quality.

MINI RECAP

A tribunal can fail constitutionally, administratively or both.

SESSION 24 - REFORM ARCHITECTURE AND NATIONAL TRIBUNALS COMMISSION

DEFINITION / WHAT THIS IS CALLED

Reform should separate administration from the repeat litigant, professionalise appointments and data, and retain sector-sensitive adjudication under review.

VISUAL FIRST

INDEPENDENT UMBRELLA SUPPORT

appointments calendar + judiciary-weighted selection + objective removal
budget/staff/infrastructure + training/ethics + national data standards
regional benches + e-filing + assisted digital access
reasoned decisions + larger-bench conflict resolution
parent-Act-specific appeals + preserved 226/227 review

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

The aim is not maximum tribunal count or maximum abolition; it is independent, accessible and coherent specialist justice.

MUST-WRITE KEYWORDS

National Tribunals Commission · independent secretariat · vacancy calendar · e-filing · coherent appellate design

TEACHING AND EXAM LINK

A National Tribunals Commission has been proposed in Law Commission and judicial discussions as an independent administrative umbrella, but a proposal or direction must not be called an operating body without verified legal constitution. Reform should publish vacancies and selection stages, protect adequate tenure, separate secretariats from sponsoring ministries, maintain physical and assisted-digital access, and require searchable reasoned orders. Appellate design should prevent routine bypass of High Courts while avoiding needless duplicate tiers.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Institutional autonomy can be centralised without centralising adjudicatory outcomes.
- **Named evidence:** The Law Commission's 272nd Report and the Supreme Court independence cases supply named evidence.
- **Analysis:** Common administrative support may reduce vacancies and infrastructure inequality.
- **Qualification:** A one-size-fits-all commission must preserve sector expertise, federal variation and decisional independence.

EVIDENCE BANK

- Law Commission of India, 272nd Report (2017).
- Madras Bar Association tribunal decisions.

PRELIMS TRAP

Trap: Do not call a National Tribunals Commission operational unless legal creation, commencement and appointments are verified.

MAINS USE

End reform answers with appointments + capacity + access + reasons + coherent review.

MINI RECAP

Common independence floor; tailored sector design; constitutional supervision.

SESSION 25 - UPSC ANSWER ARCHITECTURE AND SYNTHESIS

DEFINITION / WHAT THIS IS CALLED

A tribunal answer integrates constitutional source, statutory operation, case-law limits, performance evidence and a qualified reform verdict.

VISUAL FIRST

10 MARKS: define -> 323A/Act -> CAT function -> L. Chandra Kumar -> verdict
15 MARKS: add 323A/323B comparison + sections + cases + balanced evaluation
20 MARKS: add chronology + architecture + 2021 rationalisation + reforms
EVERY PARAGRAPH: claim -> named provision/case -> mechanism -> qualification

Caption: The visual fixes the legal category and operating sequence before detail.

ANSWER-GRABBING LINE

The safest thesis is that tribunals may redirect first-instance adjudication but cannot supplant constitutional courts.

MUST-WRITE KEYWORDS

qualified thesis · provision-case pairing · first instance · independence-capacity · reform verdict

TEACHING AND EXAM LINK

For the 2018 question, concede curtailment of ordinary first-instance jurisdiction, then preserve constitutional review. For the 2019 CAT question, show adjudicatory powers and qualified structural independence. For the 2025 question, compare need with courts and assess 2021 rationalisation through consolidation and workload-transfer effects. Avoid decorative lists of tribunals or cases.

WRITE THE ANALYTICAL PARAGRAPH

- **Claim:** Directive fidelity determines selection and depth.
- **Named evidence:** The 2018, 2019 and 2025 GS-II questions test validity, CAT authority and rationalisation.
- **Analysis:** Provision-case pairing converts knowledge into analysis.
- **Qualification:** The conclusion should defend specialisation only under independence, capacity, access and review.

EVIDENCE BANK

- UPSC GS-II 2018 Q12, 2019 Q2 and 2025 Q2.

PRELIMS TRAP

Trap: Do not answer a 'comment and assess' question with only constitutional history.

MAINS USE

Use one precise tribunal example per argument and preserve the constitutional-court floor.

MINI RECAP

Define, distinguish, operate, evaluate, reform, qualify.

Exactly **32 original MCQs** appear before the PYQ section. Questions 25-32 provide targeted remediation.
Correct-answer sequence: ABCDABCDABCDABCDABCDABCDABCDABCD.

BASIC MCQS / REMEDIATION

MCQ 1. Tribunal versus departmental authority

Which statement best distinguishes a tribunal from a departmental appellate authority?

A. A tribunal exercises statute-conferred adjudicatory jurisdiction outside the departmental chain. B. A departmental appeal always ends in a binding constitutional judgment. C. Every departmental officer hearing objections becomes a constitutional court. D. Only a tribunal may apply natural justice.

Answer: A. A tribunal exercises statute-conferred adjudicatory jurisdiction outside the departmental chain.

Option-specific explanations:

- **A:** Correct: source, institutional position and adjudicatory power distinguish the tribunal.
- **B:** A departmental decision remains administrative and open to statutory or judicial control.
- **C:** A hearing duty creates a quasi-judicial function, not constitutional-court status.

- **D:** Natural justice also binds courts, departments and other authorities where applicable.

Examiner trap 1: Classify by source and function, not merely by use of a hearing.

MCQ 2. Article 323A law-maker

Article 323A legislation may be enacted by:

A. Parliament and every State Legislature concurrently. B. Parliament alone. C. Only a State Legislature after a resolution. D. The President without legislation.

Answer: B. Parliament alone.

Option-specific explanations:

- **A:** This confuses Article 323A with Article 323B's appropriate-legislature formula.
- **B:** Correct: clause (1) expressly begins with Parliament may by law provide.
- **C:** A State request may matter for SAT establishment, but is not legislative power under 323A.
- **D:** Article 323A requires law and grants no free-standing institutional power.

Examiner trap 2: Do not convert a State request for SAT establishment into State legislative competence.

MCQ 3. Article 323A procedure

Which is expressly within Article 323A(2)(c)?

A. Appointment of Governors. B. Creation of the Finance Commission. C. Procedure including limitation and rules of evidence. D. Amendment of the Seventh Schedule without Article 368.

Answer: C. Procedure including limitation and rules of evidence.

Option-specific explanations:

- **A:** Governors are governed by Part VI, not this tribunal clause.
- **B:** The Finance Commission arises under Article 280.
- **C:** Correct: limitation and rules of evidence are express.
- **D:** Part XIV-A creates no alternative constitutional-amendment procedure.

Examiner trap 3: The actual procedural rule comes from legislation, not the enabling phrase alone.

MCQ 4. Exclusion text and doctrine

What is the present legal effect of Article 323A(2)(d)'s court-exclusion text?

A. It fully bars Articles 226 and 227. B. It abolishes Article 32 for tribunal disputes. C. It makes CAT a High Court. D. It cannot exclude High Court and Supreme Court constitutional review after L. Chandra Kumar.

Answer: D. It cannot exclude High Court and Supreme Court constitutional review after L. Chandra Kumar.

Option-specific explanations:

- **A:** The seven-judge ruling preserves High Court review as basic structure.
- **B:** Article 32 review was protected in the same settlement.
- **C:** Reviewability does not transform CAT into a constitutional court.
- **D:** Correct: state the text and then binding post-1997 doctrine.

Examiner trap 4: Separate constitutional wording from enforceable effect after judicial review.

MCQ 5. Article 323B field

Which feature belongs specifically to Article 323B?

A. Tribunals for listed fields such as taxation and labour within legislative competence. B. Only recruitment to Union civil posts. C. Creation of CAT without a statute. D. Parliament-only power for every listed subject.

Answer: A. Tribunals for listed fields such as taxation and labour within legislative competence.

Option-specific explanations:

- **A:** Correct: Article 323B is multi-subject and competence-linked.
- **B:** That belongs to Article 323A's service field.
- **C:** No Part XIV-A provision self-executes CAT into existence.
- **D:** States may legislate within competence under Article 323B.

Examiner trap 5: Listed matter plus competence is the Article 323B formula.

MCQ 6. Article 323B hierarchy

Article 323B(3)(a) expressly permits:

A. One Union service tribunal only. B. A hierarchy of tribunals. C. Automatic conversion of regulators into courts. D. Removal of Article 136 by ordinary law.

Answer: B. A hierarchy of tribunals.

Option-specific explanations:

- **A:** This is not the exact 323B wording or scope.
- **B:** Correct: hierarchy is an express and examinable word.
- **C:** A parent statute, not a label, allocates adjudication.
- **D:** The original exclusion design itself preserved Article 136.

Examiner trap 6: An Article 323B hierarchy is not the constitutional-court hierarchy.

MCQ 7. CAT legal source

Which statement about CAT is accurate?

A. CAT is created directly by Article 323A. B. CAT is a constitutional court equal to a High Court. C. CAT is a statutory tribunal established under the Administrative Tribunals Act, 1985. D. CAT hears every dispute involving a Union employee.

Answer: C. CAT is a statutory tribunal established under the Administrative Tribunals Act, 1985.

Option-specific explanations:

- **A:** Article 323A enables legislation; it does not create CAT.
- **B:** CAT lacks High Court constitutional status and remains reviewable.
- **C:** Correct: the 1985 Act is the institutional source.
- **D:** Coverage depends on Sections 2, 3(q), 14 and notifications.

Examiner trap 7: Do not confuse constitutional authorisation with statutory creation.

MCQ 8. Section 4 institutions

Which institutional arrangement does Section 4 enable?

A. A State Legislature independently creates CAT. B. The Supreme Court establishes SATs by rule. C. Every district must have a separate tribunal. D. CAT, requested SATs and a Joint Administrative Tribunal for participating States.

Answer: D. CAT, requested SATs and a Joint Administrative Tribunal for participating States.

Option-specific explanations:

- **A:** CAT's establishment is not a State legislative act.

- **B:** The Central Government acts under statute; the Court does not establish SATs.
- **C:** Bench geography is not a district-by-district constitutional command.
- **D:** Correct: these are central, State and shared statutory forms.

Examiner trap 8: A Joint Tribunal is shared by States, not an appellate tier above CAT.

MCQ 9. Armed-forces exclusion

Who is excluded by Section 2 of the 1985 Act?

A. A member of the Union armed forces. B. Every civilian employee in a defence establishment. C. Every employee of a notified government corporation. D. Every member of an All-India Service.

Answer: A. A member of the Union armed forces.

Option-specific explanations:

- **A:** Correct: naval, military, air and other armed-forces members are expressly excluded.
- **B:** Civilian defence posts may fall within Section 14.
- **C:** Notification and coverage, not a blanket exclusion, govern such bodies.
- **D:** All-India Service matters are central to Section 14 coverage.

Examiner trap 9: Armed-forces member and civilian defence employee are not interchangeable.

MCQ 10. Judicial staff exclusion

Which additional category is expressly outside the 1985 Act?

A. All university teachers. B. Officers and servants of the Supreme Court, High Courts and subordinate courts. C. All employees of local authorities. D. All pensioners.

Answer: B. Officers and servants of the Supreme Court, High Courts and subordinate courts.

Option-specific explanations:

- **A:** Universities require a body-specific coverage inquiry.
- **B:** Correct: the judicial-establishment exclusion includes subordinate courts.
- **C:** A local authority may be covered through the statutory mechanism.
- **D:** Pension is a service matter, but employment and exclusions still control.

Examiner trap 10: Do not truncate the judicial-staff exclusion to only Supreme Court employees.

MCQ 11. Section 14 field

Section 14 primarily concerns:

A. Private contractual employment disputes. B. Criminal prosecution of public servants. C. Recruitment and service matters of covered Union-linked services and posts. D. Election petitions to Parliament.

Answer: C. Recruitment and service matters of covered Union-linked services and posts.

Option-specific explanations:

- **A:** Private employment is outside CAT's service statute.
- **B:** Criminal guilt belongs to the competent criminal forum.
- **C:** Correct: Section 14 defines central service jurisdiction.
- **D:** Election adjudication follows a distinct route.

Examiner trap 11: Both the legal relationship and subject must fall within Section 14.

MCQ 12. Notification

A government-controlled society's employees enter CAT jurisdiction:

A. Whenever it receives any public grant. B. Whenever an employee alleges unfairness. C. Only after a High Court transfers every case. D. When statutory extension/notification and other jurisdictional conditions cover the body and matter.

Answer: D. When statutory extension/notification and other jurisdictional conditions cover the body and matter.

Option-specific explanations:

- **A:** Funding alone is not the statutory test.
- **B:** Merits cannot create subject-matter jurisdiction.
- **C:** CAT jurisdiction does not depend on blanket High Court transfer.
- **D:** Correct: body coverage, service matter and exclusions all matter.

Examiner trap 12: Notification is a jurisdictional fact, not a decorative detail.

MCQ 13. Service matter

Which is a 'service matter' within Section 3(q)?

A. Seniority and promotion of a covered employee. B. A neighbour's property-boundary dispute. C. A prosecution for theft unrelated to service adjudication. D. A parliamentary election challenge.

Answer: A. Seniority and promotion of a covered employee.

Option-specific explanations:

- **A:** Correct: seniority and promotion are listed service-condition concerns.
- **B:** Private property title is outside CAT's field.
- **C:** Criminal liability follows criminal law.
- **D:** Election adjudication belongs elsewhere.

Examiner trap 13: Government employment does not turn every dispute into a service matter.

MCQ 14. SAT and JAT

Which statement about SAT/JAT is safest?

A. Every State must maintain a SAT permanently. B. Sections 15-16 allocate State and participating-State service jurisdiction, but actual existence varies. C. A JAT is the appellate court over every SAT. D. State legislatures enact SAT laws under Article 323A.

Answer: B. Sections 15-16 allocate State and participating-State service jurisdiction, but actual existence varies.

Option-specific explanations:

- **A:** The Act permits arrangements; it proves no live SAT in every State.
- **B:** Correct: distinguish legal route from current institutional map.
- **C:** A JAT is shared, not a universal appellate tier.
- **D:** Article 323A legislation is parliamentary.

Examiner trap 14: Never invent a uniform current SAT map.

MCQ 15. Exhaustion

Section 20 generally reflects which principle?

A. Direct Supreme Court access before any administrative decision. B. No remedy for departmental delay. C. Ordinary exhaustion of available departmental remedies before tribunal admission, subject to the Act. D. Automatic waiver of jurisdiction defects.

Answer: C. Ordinary exhaustion of available departmental remedies before tribunal admission, subject to the Act.

Option-specific explanations:

- **A:** Article 136 is not the starting route.
- **B:** The Act prevents endless administrative silence from blocking access.
- **C:** Correct: the tribunal ordinarily receives a developed dispute.
- **D:** Parties cannot consent into subject-matter jurisdiction.

Examiner trap 15: Exhaustion is a qualified statutory gateway, not an absolute slogan.

MCQ 16. Limitation

Which statement about Section 21 limitation is correct?

A. No limitation applies because procedure is flexible. B. Delay can never be condoned. C. The Evidence Act fixes the limitation period. D. The Act prescribes limitation and permits delayed admission on sufficient cause.

Answer: D. The Act prescribes limitation and permits delayed admission on sufficient cause.

Option-specific explanations:

- **A:** Flexibility does not erase time limits.
- **B:** Section 21 includes a sufficient-cause safety valve.
- **C:** Limitation comes from the tribunal statute.
- **D:** Correct: state both the rule and qualification.

Examiner trap 16: Flexible procedure is not timeless procedure.

MCQ 17. Section 22

Section 22 means that CAT:

A. Is guided by natural justice and not rigidly bound by the CPC. B. May decide without notice whenever it wishes. C. Must apply every Evidence Act rule exactly as a civil trial. D. Has no power to summon documents.

Answer: A. Is guided by natural justice and not rigidly bound by the CPC.

Option-specific explanations:

- **A:** Correct: flexibility and fairness operate together.
- **B:** Audi alteram partem remains central.
- **C:** Evidence remains testable, but strict mechanical application is not universal.
- **D:** Section 22 confers specified civil-court-type powers.

Examiner trap 17: Not bound by CPC does not mean not bound by law.

MCQ 18. Review power

Which power is included among Section 22 civil-court-type powers?

A. Amending the Constitution. B. Reviewing its decision within statutory bounds. C. Issuing a presidential pardon. D. Abolishing High Court review.

Answer: B. Reviewing its decision within statutory bounds.

Option-specific explanations:

- **A:** A tribunal has no constituent power.
- **B:** Correct: Section 22(3)(f) recognises review.
- **C:** Clemency is an executive constitutional power.
- **D:** Section 22 lists procedural powers; it cannot abolish High Court supervision under Articles 226/227.

Examiner trap 18: Review is bounded correction, not unrestricted appeal to the same bench.

MCQ 19. Contempt

What did T. Sudhakar Prasad establish?

A. Section 17 contempt power was impliedly repealed. B. Every CAT merits order goes directly to the Supreme Court. C. Administrative tribunals retain Section 17 contempt power; punishment appeals follow the special statutory route. D. High Courts lose all review over CAT.

Answer: C. Administrative tribunals retain Section 17 contempt power; punishment appeals follow the special statutory route.

Option-specific explanations:

- **A:** The Court held Section 17 survived L. Chandra Kumar.
- **B:** Direct Supreme Court routing concerns contempt punishment, not ordinary merits.
- **C:** Correct: distinguish contempt appeal from merits review.
- **D:** Ordinary decisions remain reviewable under Articles 226/227.

Examiner trap 19: A special contempt appeal does not rewrite the ordinary merits chain.

MCQ 20. High Court route

After L. Chandra Kumar, an ordinary CAT merits order is normally scrutinised first by:

A. The President. B. The departmental secretary. C. A CAT administrative member as automatic appellate authority. D. A Division Bench of the territorial High Court under Articles 226/227.

Answer: D. A Division Bench of the territorial High Court under Articles 226/227.

Option-specific explanations:

- **A:** Executive reconsideration is not constitutional review.
- **B:** The litigant department cannot provide independent judicial review.
- **C:** An intra-tribunal appeal needs statutory basis.
- **D:** Correct: this is the seven-judge routing rule.

Examiner trap 20: High Court scrutiny is judicial review, not a statutory appeal under the 1985 Act.

MCQ 21. Article 136

Article 136 is best described as:

A. Discretionary special-leave jurisdiction, not an ordinary appeal as of right. B. A mandatory first appeal from every CAT order. C. A power exercised by State Legislatures. D. A clause eliminating High Court review.

Answer: A. Discretionary special-leave jurisdiction, not an ordinary appeal as of right.

Option-specific explanations:

- **A:** Correct: the Supreme Court chooses whether to grant leave.
- **B:** L. Chandra Kumar rejects routine bypass of High Court scrutiny.
- **C:** Article 136 vests power in the Supreme Court.
- **D:** It coexists with Articles 226/227.

Examiner trap 21: Never write 'appeal lies under Article 136 as of right'.

MCQ 22. Precedent

Which statement about tribunal precedent is sound?

A. Tribunal decisions can overrule Supreme Court precedent. B. Tribunals follow Supreme Court and controlling High Court law; coordinate-bench discipline can give their decisions precedential force. C. No tribunal decision can ever guide a later bench. D. Technical members may ignore legal precedent.

Answer: B. Tribunals follow Supreme Court and controlling High Court law; coordinate-bench discipline can give their decisions precedential force.

Option-specific explanations:

- **A:** Article 141 forecloses departure from Supreme Court law.
- **B:** Correct: precedent is hierarchical and institutionally disciplined.
- **C:** This absolute claim would produce arbitrary adjudication.
- **D:** Expertise does not authorise disregard of binding law.

Examiner trap 22: Tribunal decisions are neither supreme nor legally meaningless.

MCQ 23. Sampath Kumar

S.P. Sampath Kumar is best understood as:

A. The final authority permanently excluding High Court review. B. A judgment abolishing CAT. C. Conditional acceptance of an effective alternative mechanism in the pre-L. Chandra Kumar substitution model. D. A ruling that technical members may replace all judges.

Answer: C. Conditional acceptance of an effective alternative mechanism in the pre-L. Chandra Kumar substitution model.

Option-specific explanations:

- **A:** Its exclusion premise was superseded by the 1997 holding.
- **B:** The Act was sustained with safeguards.
- **C:** Correct: this captures context and qualification.
- **D:** The case stressed efficacy and independence.

Examiner trap 23: Use Sampath Kumar historically, never as the current exclusion rule.

MCQ 24. L. Chandra Kumar

What is the central holding of L. Chandra Kumar?

A. Tribunals cannot hear any constitutional issue. B. Article 323A was wholly repealed. C. Only Article 136 is part of basic structure. D. Articles 226/227 and 32 judicial review are basic structure; tribunal decisions remain reviewable.

Answer: D. Articles 226/227 and 32 judicial review are basic structure; tribunal decisions remain reviewable.

Option-specific explanations:

- **A:** Tribunals remain first-instance forums for many issues.
- **B:** The Articles survive; exclusion is invalid to the relevant extent.
- **C:** The judgment protected broader constitutional review.
- **D:** Correct: specialist first instance and supervision coexist.

Examiner trap 24: The judgment limits exclusion, not tribunal existence.

MCQ 25. R. Gandhi

Union of India v R. Gandhi (2010) supports which proposition?

A. Transferred judicial functions require qualifications, selection and conditions preserving judicial independence. B. Every technical member is unconstitutional. C. Parliament lacks power to create company-law tribunals. D. Executive control is irrelevant if disposal is fast.

Answer: A. Transferred judicial functions require qualifications, selection and conditions preserving judicial independence.

Option-specific explanations:

- **A:** Correct: functional equivalence is the institutional test.
- **B:** Relevant technical expertise may supplement judicial members.
- **C:** Legislative competence was accepted subject to safeguards.
- **D:** Speed cannot cure separation-of-powers defects.

Examiner trap 25: The case attacks deficient design, not specialist adjudication.

MCQ 26. National Tax Tribunal

The 2014 National Tax Tribunal decision held that:

A. All taxation tribunals are prohibited. B. The NTT design invalidly transferred High Court substantial-law work without equivalent safeguards. C. Only accountants may decide substantial questions of law. D. High Court review may be removed whenever Article 323B is cited.

Answer: B. The NTT design invalidly transferred High Court substantial-law work without equivalent safeguards.

Option-specific explanations:

- **A:** Tax specialisation remains possible through adequate design.
- **B:** Correct: function, composition and independence were assessed together.
- **C:** Technical expertise cannot replace judicial competence for core legal work.
- **D:** Article 323B cannot insulate NTT decisions from basic-structure judicial review under Articles 226/227.

Examiner trap 26: Do not generalise one defective NTT design into a ban on tax adjudication.

MCQ 27. Rojer Mathew

Rojer Mathew (2019) did which of the following?

A. Upheld the 2017 Rules unchanged. B. Finally settled the Finance Act Money Bill question. C. Struck down the 2017 Tribunal Rules and referred the Money Bill issue to a larger bench. D. Made sponsoring ministries supreme over tribunals.

Answer: C. Struck down the 2017 Tribunal Rules and referred the Money Bill issue to a larger bench.

Option-specific explanations:

- **A:** The Rules failed independence standards.
- **B:** The issue was referred rather than finally resolved there.
- **C:** Correct: keep merits holding and reference separate.
- **D:** The decision policed, rather than enlarged, executive influence.

Examiner trap 27: A reference is not a final merits determination.

MCQ 28. Invalidated 2021 features

Which 2021-rule statement is constitutionally safe?

A. A four-year tenure is unquestionably current for every tribunal. B. A minimum appointment age of fifty binds every tribunal. C. The executive may freely choose outside constrained selection principles. D. Invalidated age, tenure and shortlist features cannot be frozen as current law; applicability is parent-Act specific.

Answer: D. Invalidated age, tenure and shortlist features cannot be frozen as current law; applicability is parent-Act specific.

Option-specific explanations:

- **A:** The short-tenure design at issue was invalidated.
- **B:** The fifty-year minimum was invalidated in the challenged framework.
- **C:** Selection remains constrained by independence principles.
- **D:** Correct: present the layered framework rather than dead provisions.

Examiner trap 28: Never copy a struck-down provision into a current-law note.

MCQ 29. Tribunal Reforms Act

What did the Tribunal Reforms Act, 2021 broadly do?

A. It abolished specified appellate bodies, transferred functions and provided a framework for covered tribunals, subject to rulings. B. It placed every tribunal under the Administrative Tribunals Act. C. It removed all High Court review. D. It converted CAT into a constitutional court.

Answer: A. It abolished specified appellate bodies, transferred functions and provided a framework for covered tribunals, subject to rulings.

Option-specific explanations:

- **A:** Correct: rationalisation and service conditions must be separately assessed.
- **B:** Distinct parent statutes continue.
- **C:** The basic-structure floor survives.
- **D:** Statutory amendment cannot confer constitutional-court status.

Examiner trap 29: Separate abolition/transfer provisions from invalidated service-condition provisions.

MCQ 30. Comparative tribunal basis

Which comparison is correctly matched?

A. CAT-telecom tariff disputes. B. NGT-specified environmental civil jurisdiction and appeals under the NGT Act. C. AFT-government-corporation employees under Section 14. D. TDSAT-central civil-service promotions.

Answer: B. NGT-specified environmental civil jurisdiction and appeals under the NGT Act.

Option-specific explanations:

- **A:** CAT principally handles covered service matters.
- **B:** Correct: legal basis and function match.
- **C:** AFT follows the Armed Forces Tribunal Act.
- **D:** TDSAT's field is telecom/broadcast.

Examiner trap 30: Match parent Act and function; do not classify by the generic word tribunal.

MCQ 31. Technical members

Which statement about technical members is correct?

A. They can always replace judicial members because the forum is specialised. B. They are barred from every tribunal. C. They may add domain expertise, but judicial work requires composition preserving adjudicatory independence. D. Executive service automatically proves personal bias in every case.

Answer: C. They may add domain expertise, but judicial work requires composition preserving adjudicatory independence.

Option-specific explanations:

- **A:** R. Gandhi rejects unlimited substitution of judicial competence.
- **B:** Tribunal design may legitimately use relevant technical expertise.
- **C:** Correct: expertise is balanced with functional equivalence.
- **D:** Structural safeguards matter without presuming personal bias.

Examiner trap 31: The constitutional question is role and design, not a blanket rule.

MCQ 32. Independent administration

Which reform most directly addresses the executive-as-litigant problem?

A. Short renewable terms controlled by the sponsoring ministry. B. Removing reasons from tribunal orders. C. Eliminating all physical benches. D. Independent appointment and administration with secure conditions and transparent vacancy management.

Answer: D. Independent appointment and administration with secure conditions and transparent vacancy management.

Option-specific explanations:

- **A:** Reappointment dependence intensifies influence.
- **B:** Unreasoned orders weaken accountability.
- **C:** Digital access should supplement physical access.
- **D:** Correct: institutional separation addresses structural dependence.

Examiner trap 32: Independence cannot rest solely on individual integrity.

PYQS AND ANSWER PRACTICE

Official-key discipline: UPSC publishes question papers but no official descriptive model answers. These questions follow the verified paper/routing record; solutions are examiner-oriented models, not official keys.

VERIFIED DIRECT PYQ 1 - 2018 GS-II Q12 - 15 marks - 250 words

Question (exact): "How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India."

Demand: Address every clause; pair constitutional text with controlling doctrine and give a qualified verdict.

Model answer:

Tribunals curtail ordinary courts' first-instance reach in assigned fields, but cannot extinguish constitutional supervision. Articles 323A and 323B, inserted by the Forty-second Amendment Act, 1976, enable specialist adjudication. The Administrative Tribunals Act, 1985 channels covered service disputes to CAT, SAT or JAT; other statutes create subject-specific forums. Expertise and flexible procedure support competence, not constitutional supremacy.

In S.P. Sampath Kumar, substitution was accepted only through an effective alternative institutional mechanism. L. Chandra Kumar then held Articles 226/227 and 32 judicial review to be basic structure, invalidating exclusion clauses to that extent. Tribunal decisions therefore face scrutiny by a territorial High Court Division Bench.

Competency also depends on institutional design. Union of India v R. Gandhi and the Madras Bar Association line require qualifications, selection, tenure and administration suited to judicial work transferred. Thus tribunals validly narrow ordinary first-instance jurisdiction, but remain supplemental forums whose legitimacy depends on independence, natural justice, capacity and preserved constitutional review.

Model word count: 157

Why it works: Claim -> named provision/case -> analysis -> qualification is visible.

VERIFIED DIRECT PYQ 2 - 2019 GS-II Q2 - 10 marks - 150 words

Question (exact): "The Central Administrative Tribunal which was established for redressal of grievances and complaints by or against central government employees, nowadays is exercising its powers as an independent judicial authority. Explain."

Demand: Address every clause; pair constitutional text with controlling doctrine and give a qualified verdict.

Model answer:

CAT is a statutory adjudicatory body under Article 323A and the Administrative Tribunals Act, 1985. Section 14 gives it original jurisdiction over covered Union recruitment and service matters. Section 22 combines natural justice with flexible procedure and civil-court-type powers; Section 17 supplies contempt authority. These features make CAT judicial in function rather than a departmental appellate office.

Independence is nevertheless qualified. Sections 2 and 14 bound jurisdiction; appointments, tenure, vacancies and administrative support affect structural autonomy. L. Chandra Kumar treats CAT as the first-instance forum but preserves scrutiny by a territorial High Court Division Bench under Articles 226/227. CAT may decide many constitutional issues, yet cannot replace a constitutional court. It therefore exercises genuine independent adjudicatory authority within a statutory field, subject to institutional safeguards and constitutional supervision.

Model word count: 129

Why it works: Claim -> named provision/case -> analysis -> qualification is visible.

VERIFIED DIRECT PYQ 3 - 2025 GS-II Q2 - 10 marks - 150 words

Question (exact): "Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021."

Demand: Address every clause; pair constitutional text with controlling doctrine and give a qualified verdict.

Model answer:

Administrative tribunals remain useful for technical, repetitive and high-volume disputes because specialist benches, flexible procedure and regional access can improve first-instance speed and consistency. CAT's service-law jurisdiction illustrates this task-fit. Yet L. Chandra Kumar preserves High Court review, so tribunals supplement rather than replace courts.

The Tribunal Reforms Act, 2021 abolished specified appellate bodies and transferred functions, potentially reducing duplication. The opposite risk is workload relocation: burdened courts may receive cases without specialist members, staff, records or local access. Its common service-condition design also faced the Madras Bar Association challenge; invalidated age, short-tenure and executive-choice features cannot be quoted as current law.

Rationalisation should be judged by disposal time, vacancy duration, user cost, expertise and remand rates. Consolidation works only with independent selection, adequate tenure, infrastructure and coherent appellate design.

Model word count: 131

Why it works: Claim -> named provision/case -> analysis -> qualification is visible.

ORIGINAL MAINS PRACTICE 1 - 10 marks - 150 words

Question: Distinguish a tribunal, a court, a quasi-judicial body and a departmental appellate authority. Answer within the stated word limit.

Model answer:

A tribunal is a statute-created adjudicatory body with limited subject jurisdiction; a court belongs to the ordinary or constitutional judiciary. A quasi-judicial body is a wider functional category: whenever an authority must hear affected parties, assess material impartially and give reasons, it performs a quasi-judicial function. A departmental appellate authority may therefore act quasi-judicially while remaining inside executive administration.

CAT supplies the clearest contrast. The Administrative Tribunals Act, 1985 gives it original jurisdiction and binding powers over covered service matters. A departmental appeal under service rules only reconsiders the employer's order and is ordinarily exhausted before CAT under Section 20. High Courts, unlike CAT, retain constitutional powers under Articles 226/227.

Thus, adjudicatory procedure alone does not decide status. Source, institutional separation, jurisdiction, binding effect and review route must be examined together; a tribunal is specialist justice, not a constitutional court or an ordinary department.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 146]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 2 - 10 marks - 150 words

Question: Explain the correct review and appeal routes from an administrative tribunal. Answer within the stated word limit.

Model answer:

A service dispute begins in CAT, SAT or JAT as an Original Application; this is original statutory jurisdiction, not an appeal from a High Court. The tribunal may review its own decision only within Section 22 and applicable rules.

L. Chandra Kumar held that judicial review under Articles 226/227 and 32 is basic structure. Consequently, an ordinary tribunal merits order is scrutinised by a Division Bench of the territorial High Court. A further approach to the Supreme Court is ordinarily through discretionary special leave under Article 136, not an appeal as of right directly from CAT.

A special route must be separate: under Section 17 and T. Sudhakar Prasad, an order punishing for contempt carries the statutory appeal contemplated by Section 19 of the Contempt of Courts Act to the Supreme Court. The governing question is therefore whether the remedy is review, constitutional scrutiny, statutory appeal or special leave.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 150]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 3 - 15 marks - 250 words

Question: Decode Articles 323A and 323B clause-by-clause and explain their present constitutional operation. Answer within the stated word limit.

Model answer:

The Forty-second Amendment Act, 1976 inserted Part XIV-A, but its two enabling Articles have different fields.

Article 323A(1) permits Parliament alone to legislate for recruitment and service-condition disputes in specified public employment. Clause 2(a) permits Union, State or shared-State administrative tribunals; (b) jurisdiction and contempt; (c) procedure, limitation and evidence; (d) textual exclusion of courts except Article 136; (e) pending-case transfer; (f) amendment of an Article 371D(3) order; and (g) fees, enforcement and incidental provisions. Clause 3 is a notwithstanding clause. The Administrative Tribunals Act, 1985 operationalises this field.

Article 323B(1) empowers the appropriate legislature within competence. Clause 2 lists taxation, foreign exchange and customs-frontier trade, labour, land reform, urban-property ceiling, elections, foodstuffs and essential goods, rent and tenancy, connected offences, fees and incidental matters. Clause 3 permits a hierarchy, jurisdiction and contempt, procedure, textual court exclusion, transfer and supplemental provisions; clause 4 gives overriding effect.

L. Chandra Kumar invalidated both exclusion clauses to the extent they oust Articles 226/227 and 32 review. Thus the text permits specialist first-instance systems, but constitutional courts retain the supervisory floor. Neither Article itself creates CAT or every subject tribunal.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 191]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 4 - 15 marks - 250 words

Question: Assess whether CAT combines expertise with independent judicial authority. Answer within the stated word limit.

Model answer:

CAT combines service-law specialisation with real adjudicatory powers, but independence depends on institutional design and constitutional review.

Under Sections 3(q) and 14 of the Administrative Tribunals Act, 1985, CAT decides covered recruitment, seniority, promotion, pension and disciplinary disputes. Section 22 guides it by natural justice, frees it from rigid CPC procedure and grants powers over witnesses, documents, affidavits and review. Section 17 supplies contempt authority. Judicial and administrative members can bring legal method and public-administration experience to a repetitive docket, producing focused records and reasoned orders.

However, expertise is not independence. Government is a frequent litigant and influences appointments, administration and resources. Vacancies, insecure tenure and sponsoring-ministry dependence can impair appearance and performance. S.P. Sampath Kumar demanded an effective alternative mechanism; Union of India v R. Gandhi tied transferred judicial work to equivalent qualifications and safeguards.

L. Chandra Kumar provides the decisive qualification: CAT is a first-instance tribunal, not a High Court substitute, and decisions face Division Bench scrutiny under Articles 226/227. CAT exercises independent judicial authority in function, but that authority remains statutory, reviewable and credible only when appointment, tenure, infrastructure and decisional autonomy are secured.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 190]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 5 - 20 marks - 250 words

Question: Critically examine tribunal-independence litigation from R. Gandhi to the Tribunal Reforms Act, 2021. Answer within the stated word limit.

Model answer:

Modern tribunal litigation shows that controversy concerns institutional design more than Parliament's abstract power to create specialist forums.

Union of India v R. Gandhi (2010) accepted transfer of company-law jurisdiction to NCLT/NCLAT, but required member qualifications, selection and conditions equivalent to the judicial work transferred. The 2014 National Tax Tribunal decision applied that logic more strictly: a tribunal could not displace High Court adjudication on substantial questions of law through executive-influenced composition and inadequate judicial standards.

The Finance Act, 2017 merged bodies and authorised common service-condition rules. In Rojer Mathew (2019), the Supreme Court struck down the 2017 Rules for independence defects and referred, rather than finally settled, the Money Bill issue. Madras Bar Association (2020) again insisted on judicially balanced selection and adequate tenure. The 2021 decision invalidated reproduced defects including the fifty-year minimum age, four-year tenure and executive choice from a two-name recommendation arrangement.

The Tribunal Reforms Act, 2021 also rationalised specified appellate bodies. Consolidation may reduce duplication, but transfer can burden courts and reduce expertise. Its framework applies only as legally specified and remains controlled by judgments.

The recurring lesson is functional equivalence: technical expertise may supplement, not displace, judicial competence. Durable reform requires independent administration, secure conditions, transparent appointments and preserved High Court review.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 210]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 6 - 20 marks - 250 words

Question: Design a reform framework that improves tribunal speed, access, consistency and independence. Answer within the stated word limit.

Model answer:

Tribunal reform should pursue task-fit rather than indiscriminate creation or abolition. A specialist forum is justified where caseload, technical complexity and user access exceed the advantages of ordinary courts.

First, appointments require a transparent vacancy calendar, judiciary-weighted search and selection, published eligibility reasons and binding timelines. Secure adequate tenure and objective removal reduce reappointment dependence. Union of India v R. Gandhi and the Madras Bar Association decisions provide the constitutional basis.

Second, administration should be separated from the repeat litigant. A National Tribunals Commission or comparable independent support body could manage budgets, staff, infrastructure, training and data, while leaving adjudication to benches. Its design must preserve sector expertise and federal variation.

Third, access needs regional benches, e-filing, assisted digital facilities, legal aid, accessible cause lists and searchable reasoned orders. Larger-bench reference rules can resolve conflicting tribunal precedent.

Fourth, appellate architecture must distinguish review, statutory appeal and Article 136. L. Chandra Kumar's High Court Division Bench scrutiny cannot be removed, but needless internal tiers should be avoided.

Finally, rationalisation should publish transition plans for judges, staff, records and pending cases and measure vacancy duration, disposal time, remand rate and user cost. The goal is independent specialist first-instance justice under constitutional supervision, not merely fewer institutions.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 205]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

This block refines institutional theory. A complete GS-II core answer can be written from the Basic session and practice sections alone.

Substitution, supplementation and the constitutional location

S.P. Sampath Kumar treated an equally effective tribunal as a possible institutional substitute in the assigned field. L. Chandra Kumar changed the constitutional location: specialist tribunals retain first-instance work, while High Courts and the Supreme Court retain judicial review. The modern tribunal is neither executive department nor inferior constitutional court; it is a statutory adjudicator nested within constitutional supervision.

Judicial members, technical members and functional equivalence

Technical participation is strongest where it contributes knowledge genuinely needed for adjudication. R. Gandhi does not constitutionalise one universal member ratio; it asks whether composition, qualifications and decisional control match the transferred function. A technical member cannot substitute for judicial competence in substantial questions of law, but a judicial-only forum may lose the expertise that justified tribunalisation. The design question is task allocation inside an independent bench.

Precedent management

Consistency requires publication of reasoned orders, reliable citation, coordinate-bench discipline and larger-bench reference when disagreement is unavoidable. Supreme Court precedent binds under Article 141; the controlling territorial High Court cannot be ignored. Tribunal precedent may guide or bind institutionally according to lawful bench discipline, yet cannot overrule a constitutional court.

Rationalisation as workload engineering

Institution count is a poor success metric. Before abolition or merger, map pending cases, expertise, receiving judges, registry staff, records, geographic access and appeal routes. After transfer, measure disposal time, remand rate, vacancy duration, user cost and consistency. Rationalisation succeeds only if the receiving forum has the capacity and competence the abolished forum was supposed to supply.

National Tribunals Commission: promise and limits

An independent umbrella can manage recruitment calendars, infrastructure, budgets, training and data without deciding cases. This responds to the executive-as-litigant conflict and fragmented administration. Yet centralisation can become another bureaucracy or erase sector and State variation. Any commission must be judiciary-protected, transparent, adequately resourced and limited to administration rather than merits interference. Describe it as proposal, recommendation, direction or operative institution only after verifying the legal instrument.

CONSOLIDATED REGISTER NOTES

Definition and constitutional thesis

- Tribunal: statute-created specialist adjudicator with limited subject jurisdiction.
- Quasi-judicial is functional; a department may act quasi-judicially without becoming a tribunal.
- Core verdict: tribunals may redirect first-instance adjudication but cannot supplant constitutional courts.

Part XIV-A rapid recall

- 42nd Amendment Act, 1976 inserted Articles 323A and 323B.
- 323A: Parliament only; recruitment and service conditions in specified public employment.
- 323A(2): Union/State/shared arrangements; contempt; procedure, limitation, evidence; exclusion text; transfer; Article 371D(3); incidental provisions.
- 323B: appropriate Legislature within competence; listed fields; express tribunal hierarchy.
- 323B fields: tax; forex/import-export; labour; land reform; urban ceiling; elections; food/essential goods/prices; rent/tenancy; connected offences/fees; incidental matters.
- Text permitted court exclusion except Article 136; L. Chandra Kumar preserves Articles 226/227 and 32 review.

Administrative Tribunals Act, 1985

- Section 4: CAT; requested SAT; Joint Administrative Tribunal.
- Section 2: armed-forces members; Supreme Court, High Court and subordinate-court staff; legislative secretariat staff.
- Section 14: covered Union recruitment/service; Section 15 State; Section 16 JAT.
- Section 3(q): pay, pension, tenure, seniority, promotion and disciplinary categories.
- Sections 20-21: departmental-remedy and limitation gateways with qualifications.
- Section 22: natural justice; not rigidly CPC-bound; civil-court powers; bounded review.
- Section 17: contempt; T. Sudhakar Prasad preserves the special contempt appeal.
- Section 27: execution; Sections 29/29A: specified pending-case transfers.

Review and precedent firewall

- Ordinary merits order -> territorial High Court Division Bench under Articles 226/227.
- Thereafter possible Article 136 special leave; discretionary, not appeal as of right.
- Contempt punishment uses a separate statutory appeal route.
- Supreme Court and controlling High Court precedent bind; coordinate tribunals follow disciplined reference practice.
- Tribunal decisions are not supreme, but neither are they 'never precedential'.

Case ladder

- S.P. Sampath Kumar (1987): effective alternative institutional mechanism context.
- L. Chandra Kumar (1997): review basic structure; first instance; High Court Division Bench scrutiny.
- Union of India v R. Gandhi (2010): function-equivalent independence and judicial standards.
- Madras Bar Association (2014): defective National Tax Tribunal design invalid.
- Rojer Mathew (2019): 2017 Rules struck down; Money Bill issue referred.
- Madras Bar Association (2020/2021): selection, tenure, age and executive-choice defects controlled.

Tribunal Reforms Act, 2021 and present-law caution

- It rationalised specified appellate bodies; it did not put every tribunal under the 1985 Act.
- Read each parent Act with applicable surviving 2021 provisions/rules and binding judgments.
- Do not freeze invalidated four-year tenure, fifty-year minimum age or executive shortlist features as current law.

Comparative legal basis

- CAT: Administrative Tribunals Act 1985; public-service disputes.
- NGT: NGT Act 2010; specified environmental jurisdiction/appeals.
- NCLT: Companies Act 2013 and IBC routes; company/insolvency work.
- AFT: AFT Act 2007; armed-forces service and court-martial appeals.
- TDSAT: TRAI Act 1997; telecom/broadcast disputes and appeals.
- Never assume all are Article 323B bodies or share one appeal route.

Benefits, deficits and reform

- Benefits: expertise, focus, flexible procedure, regional access, consistent records, court relief.
- Deficits: vacancies, executive control, fragmented administration, infrastructure, inconsistent precedent, appointments litigation and pendency.
- Reform: independent appointments/administration, secure conditions, e-filing plus assisted access, regional benches, searchable reasons, coherent appeals and transition assessment.
- National Tribunals Commission remains proposal/direction unless legal constitution and operation are verified.

Prelims traps

- 323A Parliament only; 323B appropriate Legislature.
- Articles enable; statutes create. CAT is statutory, not constitutional.
- Flexible procedure does not mean absence of natural justice.
- L. Chandra Kumar did not abolish tribunals or create routine direct Supreme Court appeals.
- Technical expertise cannot displace required judicial competence.
- Rationalisation may shift, rather than solve, pendency.

Mains answer spine

Define -> distinguish 323A/323B -> identify parent Act and jurisdiction -> explain procedure and review -> apply Sampath/L. Chandra Kumar/R. Gandhi/MBA -> evaluate independence plus capacity -> assess 2021 rationalisation -> propose access, appointments, administration and appellate reforms -> conclude: specialist first instance under constitutional supervision.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

PANEL 01/12 - DEFINITION AND CATEGORY FIREWALL

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| Tribunal = statute-created specialist adjudicator with limited subject jurisdiction.
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| Court = ordinary/constitutional judiciary; High Courts retain Arts 226/227.
|
| Quasi-judicial describes a function requiring fair hearing; it is wider than tribunal.
|
| Departmental appeal = executive reconsideration, even when natural justice applies.
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| Test every body by source, function, independence, binding power and review route.
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PANEL 02/12 - ORIGIN AND CONSTITUTIONAL TIMELINE

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| 1976: Forty-second Amendment inserts Part XIV-A, Articles 323A and 323B.
|
| 1985: Administrative Tribunals Act creates CAT route and enables SAT/JAT.
|
| 1987: S.P. Sampath Kumar accepts an effective alternative mechanism context.
|
| 1997: L. Chandra Kumar preserves constitutional review; tribunals become supplemental.
|
| 2010-2021: R. Gandhi, Rojer Mathew and MBA line police independence.
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PANEL 03/12 - ARTICLE 323A CLAUSE MAP

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| (1) Parliament only; recruitment and conditions of service in public employment.
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| (2)(a) Union/State/shared-State tribunals; (b) jurisdiction incl contempt.
|
| (2)(c) procedure incl limitation/evidence; (d) exclusion text except Art 136.
|
| (2)(e) transfer; (f) Art 371D(3) order; (g) fees/enforcement/incidental.
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| (3) notwithstanding clause; L. Chandra Kumar limits exclusion effect.
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PANEL 04/12 - ARTICLE 323B CLAUSE MAP

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| (1) appropriate Legislature within competence; disputes, complaints or offences.
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| (2) tax; forex/import-export; labour; land reform; urban ceiling; elections.
|
| Also food/essential goods/prices; rent/tenancy; offences/fees; incidental.
|
| (3) hierarchy, powers incl contempt, procedure, exclusion text, transfer, support.
|
| (4) notwithstanding clause; constitutional judicial review still survives.
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PANEL 05/12 - 323A VERSUS 323B

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| 323A: service field; Parliament only; administrative tribunal arrangements.
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| 323B: multiple listed fields; competent Parliament/State Legislature; hierarchy.

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 | Both are enabling: implementing legislation creates and defines the tribunal.
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 | Both mention contempt, limitation, evidence, transfer and exclusion text.
 |
 | Neither authorises removal of Arts 226/227 and 32 basic-structure review.
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 PANEL 06/12 - 1985 ACT: INSTITUTIONS, JURISDICTION AND EXCLUSIONS

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| Section 4: CAT; requested SAT; Joint Tribunal for participating States.
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 | Section 14: covered Union service; Section 15: State; Section 16: JAT.
 |
 | Section 2 excludes armed-forces members, judicial staff incl subordinate courts,
 |
 | and legislative secretariat staff; civilian defence posts are a distinct inquiry.
 |
 | CAT is statutory; body notifications and Section 3(q) matter.
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 PANEL 07/12 - APPLICATION, PROCEDURE AND POWERS

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| Adverse service action -> departmental remedy ordinarily (s20) -> OA -> s21 limitation.
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 | Section 22: natural justice; not rigidly CPC-bound; civil-court-type powers.
 |
 | Evidence is flexible but fair; notice, disclosure, impartiality and reasons remain.
 |
 | Review is bounded; s27 execution; interim relief is jurisdiction-specific.
 |
 | Sections 29/29A transfer qualifying pending matters in statutory situations.
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 PANEL 08/12 - CONTEMPT, REVIEW AND ROUTES

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| Section 17 gives contempt power; T. Sudhakar Prasad confirms survival.
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 | Contempt punishment appeal follows special statutory route to Supreme Court.
 |
 | Ordinary merits order -> territorial High Court Division Bench, Arts 226/227.
 |
 | Thereafter Art 136 special leave is discretionary, not appeal as of right.
 |
 | Review, statutory appeal, judicial review and special leave differ.
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 PANEL 09/12 - CASE-LAW LADDER

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| Sampath Kumar (1987): effective alternative institutional mechanism context.
 |
 | L. Chandra Kumar (1997): 226/227 and 32 basic structure; first instance.
 |
 | UOI v R. Gandhi (2010): functional equivalence and independence.
 |
 | MBA NTT (2014): deficient substitute for HC substantial-law function invalid.
 |
 | Rojer Mathew (2019) + MBA 2020/2021: rules, selection, tenure, influence.
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PANEL 10/12 - 2021 RATIONALISATION AND CURRENT-LAW METHOD

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- | 2021 Act abolished specified appellate bodies and transferred functions.
- | Consolidation may reduce duplication but shift workload/expertise/access costs.
- | Invalidated age, short-tenure and executive-choice features are not current law.
- | Read parent Act + surviving 2021 provisions/rules + binding judgments.
- | Never imply every tribunal follows the ATA or one appeal structure.

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PANEL 11/12 - INSTITUTIONAL COMPARISON AND PERFORMANCE

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- | CAT-service; NGT-environment; NCLT-company/insolvency; AFT-armed forces.
- | TDSAT-telecom; legal basis/function/route differ; 323B label is not automatic.
- | Benefits: expertise, focused procedure, consistency, access, court relief.
- | Problems: vacancies, executive control, fragmentation, infrastructure, precedent.
- | Measure disposal, vacancy duration, remands, user cost and decision quality.

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PANEL 12/12 - REFORM, PYQ ROUTE AND QUALIFIED VERDICT

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- | Independent appointments/admin; secure conditions; vacancy calendar; budgets.
- | Regional benches + e-filing + assisted access + searchable reasoned decisions.
- | Coherent appeals, larger-bench conflict resolution, transfer plans and data.
- | PYQ: define -> 323A/B -> ATA -> cases -> need/problems -> 2021 -> reform.
- | Verdict: specialist first instance only under independence and constitutional review.

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